

EXAMINATION SCHEME

L.L.B., Semester- VI

Subject wise marks allotted and corresponding credits (w.e.f-2019-20)

S. No.	Subject Code	Name of subject	Marks Allotted							Total Marks	Credit / Contact Hours per Week			Total Credits
			Theory		Internal Assignment		Practical / Viva-Voice				L	T	P	
			Max. Marks	Min. Marks	Max. Marks	Min. Marks	Max. Marks	Min. Marks						
1	LLB-601	Labour Law - II	80	32	20	8	0	0	100	5	1	0	6	
2	LLB-602	Insurance Law	80	32	20	8	0	0	100	5	1	0	6	
3	LLB-603	Criminology, Penology & Forensic Science	80	32	20	8	0	0	100	5	1	0	6	
4	LLB-604	Banking Law	80	32	20	8	0	0	100	5	1	0	6	
5	LLB-605	Interpretation of Statutes	80	32	20	8	0	0	100	5	1	0	6	
6	LLB-606	Moot Court (Clinical - IV)	0	0	0	0	100	40	100	0	0	6	6	
Total			400	160	100	40	100	40	600	25	5	6	36	

L: Lecture T: Tutorial P: Practical

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L.L.B. PART-III SEMESTER - VI
PAPER – I LABOUR LAWS – II

UNIT - I

Mines Act 1952, Aims, Object, Commencement, definition, Inspectors & certifying surgeons, Committees, provisions as to health & safety, Hours & limitation of employment, Leave with wages, Regulation, rules, Penalties & procedures.

UNIT - II

Bonded Labour System (Abolition) Act 1976, Aims, object, operation, definition of Act, Abolition of bonded labour system, Extinguishment of liability to repay bonded debt, Implementing authorities, Vigilance committee, Offences & procedure for trial.

UNIT - III

Equal remuneration Act 1976, Introduction, definition, Act to leave overriding effect, Payment of remuneration of equal rates to men & women works & other matters, Miscellaneous – duty of employers to maintain register, inspection, penalties, offences by cognizance & trial of offence, power of central Government.

UNIT - IV

Child Labour (Prohibition & Regulation Act 1986), Definition, object, scope of act, Prohibition of employment of children in certain occupation & process, Regulation of condition of work of children, Miscellaneous, Penalties, procedure, employment of inspector, power, rules, repeal and saving.

UNIT - V

E.S.I. Act 1948, Definition, Object, Scope of Act, Corporation, Standing committee & medical benefit leave, Finance & Audit, Contribution, Benefits, Adjudication of disputes, clause, Penalties.

BOOKS RECOMMENDED:-

1. Malik, P.L. : Industrial Law
2. Pande V.N. : Text-Book of labour & Industrial Law
3. Shrivastava K.D. : Commentaries on Factories Act, 1948
4. Padhi : Labour and industrial laws PHI
5. Shrivastava K.D. : Commentaries on Workman Compensation Act 1923
6. Shrivastava K.D. : Law Relating to Trade Union in India

L.L.B. PART-III SEMESTER - VI
PAPER – II INSURANCE LAW

UNIT - I Introduction

Definition nature and history of insurance, Concept of Insurance and law of contract and law of torts future of insurance in globalizes economy, History and development of insurance in India, Insurance Regulatory Authority – role and functions.

UNIT – II General Principles of Law of Insurance

Contract of Insurance-classification of contract of insurance, nature of various insurance contracts parties thereto, principle of good faith, non disclosure, misrepresentation in insurance contracts, Insurable interest, The risk, The policy, classification of policies – its form and contents, its commencement, duration, cancellation, alteration, rectification, renewal, assignment, construction, Conditions of the policy, Alteration of the risk, Assignment of the subject matter.

UNIT – III Insurance

Nature and scope of life insurance, definition kinds of life insurances, the policy and formation of a life insurance contract, Event insured against life insurance contract, Circumstances affecting the risk, Amounts recoverable under life policy, Persons entitled to payment, Settlement of claim and payment of money.

UNIT – IV Marine Insurance

Nature & scope, Classification of marine policies, The marine Insurance Act 1963, Insurable interest, insurable value, Marine insurance policy – conditions, express – warranties, constructions of terms of policy, Voyage – deviation, Perils of the sea, Partial loss or ship and of freight, salvage, general average, particular charges, Measures of indemnity, total valuation, liability to third parties.

UNIT – V Social Insurance in India

Important elements in social insurance, its need, Commercial insurance and social insurance, Workmen's compensation – scope, risk covered, industrial accidents occupational diseases, cash benefits, incapacity, amount of compensation, nature of injuries, dependents schedule, Sickness insurance, a darker scheme, stack and Rao scheme for wage earners and others, risks covered, maturity and other benefits, Old age, premature death and invalidity insurance of pension insurance, public provident fund, Fire insurance, Social insurance for people like seamen, seamen, circus workers and agricultural, workers, Public liability insurance, The scheme, Authorities.

BOOKS RECOMMENDED:-

1. Singh, Bridge Anand, New Insurance Law (2000) Union Book Publishers, Allahabad
2. Jvamy, Case Book on Insurance Law (1984), Butterworths
3. Jvamy, General principles of insurances law (1993), Butterworths
4. John Birds, Modern insurances law (1988), Sweet and Maxewell
5. Sreenivasan. M.N. Principles of insurance law (1997), Ramaniya pub, Banglore
6. M.N. Mishra – Law of Insurance – Central Law Agency, Allahabad.

L.L.B. PART-III SEMESTER - VI
PAPER – III BANKING LAW

UNIT – I Introduction

Evolution of Banking institution in India banking definition, banking company in India, banking legislation in India-common law and statutory, Commercial banks: function, Essential functions, Agency services, System of banking : Unit banking, branch banking, group banking and chain banking.

UNIT – II Bank and Customers

Customer : meaning, Legal character of banker – customer relationship, Special types of customers : Lunatics, minors, agents, administrators and executors, partnership firms and companies, Cheque – Duties and liabilities of banks payment of cheques by bank liabilities of the banker in case of dishonor-protection of paying banker-forged cheques – alteration of cheque – collection of cheques and drafts-protection of collecting banker.

UNIT - III

Bill of exchange, promissory note – Hindi types of Hindi, notary public noting protest acceptance for honour payment for honour, Holder and holder in due course-distinction between a holder and holder in due course essential features of negotiable instrument – different types of bill and note reasonable, acceptance and negotiations, types of endorsement – restrictive endorsement – endorsement excluding personal liability – partial endorsement – (once a bearer in tangent always a bearer instrument), Dishonor of negotiable instrument.

UNIT – IV Control Banking Theory and RBI

Characteristics and function of central banks, The Reserve Bank of India as central bank of India, Objectives and organizational structure, Functions, Regulations of the monetary system, Monopoly of note issue, Credit control, Determination of bank rate policy, Open market operations, Banker of Government, Control over non-banking financial institutions, Economic and statistical research, Staff training, Control and supervisions of other banks, Interest: Rule against penalties, default and recovery.

UNIT – V Merchant Banking

Merchant banking in India, SEBI (Merchant Bankers) Regulations, 1992, Recovery of Debts Due to Bank and Financial institutions Act, 1993.

BOOKS RECOMMENDED:-

1. M.S. Parthasarthy (ed.) Kharganvala on the Negotiable Instruments Act (1998), Butterworth, New Delhi
2. M.L. Tannen's Banking Law and Practice in India, (2000) India Law House, New-Delhi
3. S.N. Gupta, The Banking Law in Theory and Partice, (1999), Universal New Delhi
4. G.S.N. Tripathi (ed.), Sethi's Commentaries on Banking Regulation Act 1949 and Allied
5. Banking Laws (2000), Law Pub. Allahabad.


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L.L.B. PART-III SEMESTER - VI
PAPER – IV CRIMINOLOGY, PENOLOGY AND FORENSIC SCIENCE

UNIT-I

Origin and concept of crime, definition, scope, classification of crimes, theories of criminology, emerging patterns of crimes. Crime and criminals, white collar crimes, offences against person and property – legal and social aspects; Punishment theories, objectives and types, institutional & non – institutional treatment of offenders; criminology causation.

UNIT-II

Schools of thought in criminology; history of institutional correction; correctional institutions of juvenile and adults special facilities and amenities for inmates; special correctional institutional methods of correction; latest development.

UNIT-III

Crime prevention and recidivism; prisons, probation and parole, police organization, case diary; arrest and seizure.

UNIT-IV

History and development of forensic science, areas and scope; scene of crime and preservation, collection, packing and transportation of various types of physical evidence; impressions finger prints, food and footwear prints, types prints, track marks, call patterns.

UNIT-V

Questioned documents; nature, types and examination of forged documents, charged documents, attestation in documents, characteristics seal and examination of handwritten typed printed & indented materials; seal & rubber stamps; DNA profiling and forensic aspect.

BOOKS RECOMMENDED:-

1. Sutherland : Principles of Criminology
2. Ahmad Siddique : Criminology – problems and perspectives
3. N.V. Paranjape : Criminology and Penology
4. Bansanti Lal Babel : Apradh Shastra
5. J. D. Sharma : Vidhi Vigyan and Vish Vigyan
6. H.J. Walls : Forensic Science
7. Basanti Lal Babel : Nayayik Vigyan

L.L.B. PART-III SEMESTER - VI
PAPER – V INTERPRETATION OF STATUTES

UNIT – I Interpretation of Statues

Meaning of the term 'statues', Commencement, operation and repeal of statues, Purpose of interpretation of statues.

UNIT – II Aids to Interpretation

Internal aids – Titles, Preamble, Heading and marginal notes, Sections and sub-sections, Punctuation marks, Illustrative, exceptions, provisos and saving clauses, Schedules, Non-obstinate clause. External aids – Dictionaries, Translations, Travaux Preparatoires, Statues in pari material, Contemporanea Exposito, Debates, inquiry commission reports and Law commission reports.

UNIT – III Rules of Statutory Interpretation

Primary rules, Literal rule, Golden rule, Mishief rule (rule in the Heydon's case).

UNIT – IV Interpretation with reference to the subject matter and purpose

Restrictive and beneficial construction, Taxing statues, Penal statues, Welfare legislation.

UNIT – V Principal of Constitutional Interpretation

Harmonious constructions, Doctrine of pith and substance, Colourable legislation, Ancillary powers, "Occupied field", Residuary power, Doctrine of repugnancy.

BOOKS RECOMMENDED:-

1. G.P. Singh, Principal of Statutory Interpretation, (7th ed.), 1999, Wadhwa Nagpur
2. P.St. Langan (ed.), Maxwell on the Interpretation of Statues (19760, N.M. Tripathi, Bombay
3. K. Shanmukham, N.S. Bindras's Interpretation of Statues (1997) The Law Book Co. Allahabad
4. V. Sarathi, Interpretation of Statues, (1984), Eastern & Co.
3. M.P. Jain, Constitutional Law of India, (1994) Wadhwa & Co.
4. M.P. Singh, (ed.) V.N. Shukla's Constitution of India (1994) Eastern Lucknow
5. U. Baxi, Introduction to Justice K.K. Mathews, Democracy Equality and Freedom (1978) Eastern Lucknow.

L.L.B. PART-III SEMESTER - VI
PAPER – VI MOOT COURT (CLINICAL-IV)

In this paper the marks shall be divided in following parts

1. Participation in Moot Court (30 Marks) – every student may be required to do at least 3 moot courts with 10 marks for each. The moot court work will be on assigned problem and it will be evaluated for 5 marks for written submissions & 5 for oral advocacy.
2. Observance of Trial – (one civil & one criminal case) Students may be required to attend two trials in the course.
3. Advocate chamber
4. Dairy preparation – 20 marks (one civil & one criminal case).
5. Viva – 10 marks – the viva voce examination on all the above 3 aspects will be conducted.

This practical should be conducted in the Department of Law of concern University. Viva – Voce examination of this paper will be conducted by a panel of two examiners out of which one external examiner shall be appointed by the examination committee of the University and internal examiner will be head of the Department of Law of the University

BOOKS RECOMMENDED:-

1. Dr. Kailash Roy : Moot Court
2. Dr. Sant Kumar Gupta : Moot Court Pre – Trial Preparation & Participation
3. Dr. Om Prakash Mishra : In Trial Proceedings.